

TAB 29



Board of Education Report

File #: Res-034-25/26, **Version:** 1

Agenda Date: 12/16/2025

In Control: Board of Education

Ms. Newbill, Mr. Schmerelson - Opposing the Unlawful Transfer of U.S. Department of Education Functions to Other Federal Agencies (Res-034) (For Action January 27, 2025)

Whereas, Congress established the U.S. Department of Education to ensure focused, expert, and coordinated federal support for the nation's public schools and students, and to uphold a national commitment to equitable, high-quality education for all;

Whereas, Federal law clearly grants Congress alone the authority to alter the functions and responsibilities of the Department of Education;

Whereas, For decades the Department has played an essential role in ensuring that all students, particularly those historically underserved including students of color, students from low-income backgrounds, students with disabilities, English learners, students experiencing homelessness, students in foster care, and others receive the services, protections, and educational opportunities to which they are legally entitled;

Whereas, The current administration announced this week its intention to unlawfully transfer numerous critical functions and offices of the Department of Education to other federal agencies, actions that would create widespread confusion, undermine congressional authority, and destabilize the nation's education system;

Whereas, Earlier this year, the illegal transfer of the Office of Career, Technical, and Adult Education to the Department of Labor (DOL) resulted in significant operational failures, including delayed guidance, disrupted training, and impeded access to funding for states and school districts demonstrating that such agencies lack the expertise, infrastructure, and capacity to administer education programs;

Whereas, Shifting additional programs to DOL, the Department of Health and Human Services, the Department of the Interior, and the Department of State would multiply bureaucratic barriers, reduce oversight, and force states, districts, families, and students to navigate unfamiliar agencies with no experience administering K-12 or higher education programs;

Whereas, Moving core functions of the Office of Elementary and Secondary Education-including management of Title I-to DOL is especially nonsensical and would erode critical oversight of annual assessments, school accountability, literacy initiatives, family engagement programs, charter and community school support, and services for migrant and homeless students, among others;

Whereas, DOL enforcement offices such as OSHA and the Wage and Hour Division are structured for workplace regulatory compliance, not for continuous improvement or partnership with state education agencies, and are therefore wholly unsuited to performing federal education duties;

Whereas, Public polling consistently shows that nearly two-thirds of U.S. adults oppose eliminating or

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weakening the Department of Education, demonstrating widespread recognition of the harm such actions would cause to students and public schools;

Whereas, Anticipated future transfers of the Office for Civil Rights (OCR) and the Office of Special Education and Rehabilitative Services (OSERS) are deeply alarming, particularly given by OCR's recent dismissal of thousands of civil rights cases, leaving millions of students without remedies to enforce their federally protected rights;

Whereas, As the nation marks the 50th anniversary of the Individuals with Disabilities Education Act (IDEA), any attempt to transfer special education oversight to HHS represents a profound step backward, threatening to re-segregate and marginalize students with disabilities and diminish decades of progress; and

Whereas, These actions will distance students from the federal protections, resources, and support systems they rely upon, and the agencies designated to assume these responsibilities lack the relationships, expertise, and staffing required to fulfill them; now, therefore, be it

Resolved, That the Los Angeles Unified School District strongly condemn and oppose the administration's unlawful and irresponsible transfer of authority from the Department of Education to other federal agencies;

Resolved further, That the District opposes the firing of hundreds of workers within OSERS which oversees states' compliance with IDEA;

Resolved further, That District opposes the administration's actions towards the Department of Education's actions towards the Office of Civil Rights, which has abandoned its mission to uphold the rights of all students, especially those who are from traditionally marginalized communities;

Resolved further, That we call upon Congress to immediately reassert its constitutional authority, halt these unprecedented and legally dubious actions, and protect the integrity and mission of the U.S. Department of Education; and, be it finally

Resolved, That the District affirms our unwavering commitment to safeguarding the rights, opportunities, and educational futures of all students, and to ensuring that federal education policy remains grounded in equity, expertise, and the rule of law.